



Acrow – Ausgroup Industrial Services

MN-60025

Phase 1 Determination

Acquisition may be put into effect

10 August 2026

1. Determination and statement of reasons

Notified acquisition	Acrow Limited (Acrow) proposes to acquire Ausgroup Industrial Services (Qld) Pty Ltd (Ausgroup), through the acquisition of all the issued shares in Ausgroup's 100% holding company, Radbyrn Pty Limited (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, Acrow, is an ASX-listed supplier of formwork, industrial access solutions and commercial scaffolding. It has operations around Australia, including in the Mackay and Bowen Basin region of Queensland, where it operates under the MI Scaffold brand. Acrow also operates scaffolding businesses in Townsville (under the Benchmark Scaffolding brand) and Gladstone (under the Acrow brand). The target, Ausgroup, supplies industrial access solutions and commercial scaffolding, paint and blast services and engineering services in the Mackay and Bowen Basin region. It primarily supplies services to industrial and mining customers.
Overlap and relationship between the Parties	Acrow and Ausgroup (the Parties) both supply industrial access and commercial scaffolding services in the Mackay and Bowen Basin region.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form, information from third parties and publicly available information. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings. • The merged entity would likely continue to face competition from alternative suppliers of industrial access and commercial scaffolding services in the Mackay and Bowen Basin region of Queensland.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are

	dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**